Ans. (d) : All the three statements are correct. Any sort of disbursement from or appropriation of Indian Public Finance is subject to the approval and regulation of the Parliament of India. Under Article 266 (1) of the Constitution of India, a Consolidated Fund of State (a separate fund for each state) has been established. The Consolidated Fund receives all state government revenues as well as all loans raised by issue of treasury bills. The Public Account was constituted by Article 266(2)of the Indian Constitution. It deals with the transactions that are related to debt and not covered under the Consolidated Fund of India. The Contingency Fund of India established under Article 267 (1) of the Constitution is in the nature of an imprest (money maintained for a specific purpose) which is placed at the disposal of the President to enable him/her to make advances to meet urgent unforeseen expenditure, pending authorisation by the Parliament. Appropriations and disbursements under the Railway Budget need to be approved by the Parliament like other appropriations and disbursements.

45. Consider the following statements:

1. **The highest criminal court of the district is the Court of District and Session Judge.**
2. **The District Judges are appointed by the Governor in consultation with the High Courts.**
3. **A person to be eligible for appointment as a District Judge should be an advocate or a pleader of seven year's standing or more, or an officer in judicial service of the Union of the State.**
4. **When the Sessions Judge awards death sentence, it must be confirmed by the High Court before it is carried out.**

Which of the statements given above are correct?

(a) 1 and 2 (b) 2, 3 and 4
(c) 3 and 4 (d) 1, 2, 3 and 4

Ans. (d) : The District and Sessions Judge's Court is the highest judicial court in the district. Article 233 (1) — The appointment of a District Judge in a State is made and promoted by the Governor of that State in consultation with the High Court having the jurisdiction over the State concerned. Article 233 (2) - A person who is not already in the service of the Union or a State, shall be eligible to be appointed as a District Judge only if he has been an advocate for at least 7 years. The decision of the death sentence of the session judge will be valid only after the confirmation of the High Court. (Source - Constitution and Polity of India - Youth Competition Times)

46. Consider the following statements:

1. **The Speaker of Lok Sabha has the power to adjourn the House sine die but, on prorogation, it is only the President who can summon the House.**
2. **Unless sooner dissolved or there is an extension of the term, there is an automatic dissolution of the Lok Sabha by efflux of time, at the end of the period of five years, even if no formal order of dissolution is issued by the President.**
3. **The Speaker of Lok Sabha continues in office even after the dissolution of the House and until 'immediately before the first meeting of the House.'**

Which of the statements given above are correct?

(a) 1 and 2 (b) 2 and 3
(c) 1 and 3 (d) 1, 2 and 3

Ans. (d) : Article 85— (1) The President shall, from time to time, session every House of Parliament at such time and place as he thinks fit.
(2) The President may from time to time
(a) Prorogue the Houses or any House
(b) Dissolve the Lok Sabha.
Article 94 - The Speaker shall not vacate his post immediately before the first session of the Lok Sabha to be held after the dissolution of the Lok Sabha.
The Speaker of the Lok Sabha has the power to adjourn the House indefinitely. (Source - Constitution and Polity of India - Youth Competition Times)

47. Which one of the following statements correctly describes the Fourth Schedule of the Constitution of India?

(a) It contains the scheme of the distribution of powers between the Union and the States
(b) It contains the languages listed in the Constitution
(c) It contains the provisions regarding the administration of tribal areas
(d) It allocates seats in the Council of States

Ans. (d) : The Fourth Schedule of the Constitution deals with the allocation of seats in the Rajya Sabha to the States and Union Territories. The allocation is based upon the population of states and UTs. So far, all states and only Union Territory of Delhi and Puducherry have representation in Rajya Sabha.

48. The resolution for removing the Vice-President of India can be moved in the

(a) Lok Sabha alone
(b) either House of Parliament
(c) Joint Sitting of Parliament
(d) Rajya Sabha alone

Ans. (d) : According to Article 67 of the Constitution of India, the Vice-President can be removed by a resolution of the Rajya Sabha passed by an effective majority and agreed to by a simple majority of the Lok Sabha. But no such resolution may be moved unless at least 14 days advance notice has been given. Notably, the Constitution does not list grounds for removal. No Vice-President or ex officio Vice-President has ever faced removal proceedings.

49. With reference to the Constitution of India, which one of the following pairs is not correctly matched?

(a) Forests : Concurrent List
(b) Stock Exchanges : Concurrent List
(c) Post Office Savings Bank : Union List
(d) Public Health : State List

Ans. (b) : Stock Exchanges are listed in the Seventh Schedule (Article 246) List I-Union List, item no. 90 that reads, taxes other than stamp duties on transactions in stock exchanges and futures markets.Forests-Concurrent List, 17-A, Post Office Savings Bank - Union List-3, Public health and sanitation; hospitals and dispensaries - State List -6.

50. Consider the following tasks:

1. **Superintendence, direction and conduct of free and fair elections.**
2. **Preparation of electoral rolls for all elections to the Parliament, State Legislature and the Office of the President and the Vice-President.**
3. **Giving recognition to political parties and allotting election symbols to political parties and individuals contesting the election.**
4. **Proclamation of final verdict in the case of election disputes.**

Which of the above are the functions of the Election Commission of India?

(a) 1, 2 and 3 (b) 2, 3 and 4
(c) 1 and 3 (d) 1, 2 and 4

Ans. (a) : The functions of the Election Commission of India are superintendence, direction and control of the preparation of the electoral rolls for the conduct of all elections to the Parliament and to the Legislature of every State and of elections to the offices of President and Vice President. Election Commission of India prepares electoral rolls for all above said elections. Election Commission recognizes political parties and provides them election symbols. Proclamation of final verdict in case of election dispute lies with Supreme Court of India which in turn shall obtain the opinion of the Election Commission and shall act according to such opinion.

51. Consider the following statements:

1. **The highest deciding body for planning in India is the Planning Commission of India.**
2. **The Secretary of the Planning Commission of India is also the Secretary of National Development Council.**
3. **The Constitution includes economic and social planning in the Concurrent List in the Seventh Schedule of the Constitution of India.**

Which of the statements given above is/are correct?

(a) 1 and 2 (b) 2 and 3
(c) 2 only (d) 3 only

Ans. (b) : The highest decision making body for planning in India is the Parliament. The Secretary of the Planning Commission of India is also the Secretary of National Development Council. Economic and social planning is placed under Entry 20 in the Concurrent list.

52. With reference to Indian Parliament, which or one of the following is not correct?

(a) The Appropriation Bill must be passed by both the Houses of Parliament before it can be enacted into law.
(b) No money shall be withdrawn from the Consolidated Fund of India except under the appropriation made by the Appropriation Act.
(c) Finance Bill is required for proposing new taxes but no another Bill/Act is required for making changes in the rates of taxes which are already under operation.
(d) No Money Bill can be introduced except on the recommendation of the President.

Ans. (c) : Appropriation Bill gives power to the government to withdraw funds from the Consolidated Fund of India for meeting the expenditure during the financial year. Under Article 114(3) of the Constitution, no amount can be withdrawn from the Consolidated Fund without the enactment of such a law by Parliament. According to Article 265 of the Constitution, no tax shall be levied or collected except by authority of law. A Finance Bill is a Money Bill as defined in Article 110 of the Constitution. Finance Bill is part of Union Budget, stipulating all legal amendments required for changes in taxation. Hence statement 3 is not correct. Money Bill could be introduced on the recommendation of the President. If a question arises Whether a Bill is Money Bill or not, the decision of the Speaker of the Lok Sabha is final.

3. Which one of the following Articles of the Constitution of India says that the executive power of every State shall be so exercised as not to impede or prejudice the exercise of the executive power of the Union?

(a) Article 257 (b) Article 258
(c) Article 355 (d) Article 356

Ans. (a) : Art.257 (1) : The executive power of every State shall be so exercised as not to impede or prejudice the exercise of the executive power of the Union, and the executive power of the Union shall extend to the giving of such directions to a State as may appear to the Government of India to be necessary for that purpose.

54. Match List I (Articles of the Constitution of India) with List II (Provision) and select the correct answer using the codes given below the lists: